

District- Dhaka

In the Supreme Court of Bangladesh
High Court Division
(Criminal Revisional Jurisdiction)

Criminal Revision No.5487 of 2023**In the matter of:**

An application under Section 439 read with
Section 435 of the Code of Criminal Procedure.

-And-

In the matter of:

Md. Abdul Lotif Bepary

.... Accused-Petitioner

-Versus-

The State and another

.... Opposite Parties

Mr. Kazi Helal Uddin, Advocate

.... For the accused-Petitioner.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 4th March 2024

This application under Section 439 read with Section 435
of the Code of Criminal Procedure at the instance of the sole
accused Md. Abdul Lotif Bepary of Criminal Appeal No.319 of
2021 arising out of Metro Sessions Case No.9320 of 2013 and

arising out of Complainant Register Case No.864 of 2012 under Section 138 of the Negotiable Instrument Act, 1881 is directed against order dated 02.02.2023 passed by the learned Additional Metropolitan Session Judge, 8th Court, Dhaka rejecting a petition filed by above appellant under Section 428 of the Code of Criminal Procedure for recall of the sole prosecution witness for cross examination.

Facts in short are that trial of above Metro Session Case No.9320 of 2013 under Section 138 of the Negotiable Instrument Act, 1881 was held in absentia of the petitioner who was the sole accused and he was unable to cross examine the sole prosecution witness. On conclusion of trial the learned Joint Session Judge convicted above accused under Section 138 of the Negotiable Instrument Act, 1881 and sentenced him to imprisonment for 1(one) year and pay fine of Tk.13,000,00/- (thirteen lac).

Challenging the legality and propriety of above judgment and order above accused preferred Criminal Appeal No.319 of 2021 and submitted a petition in above appeal

under Section 428 of the Code of Criminal Procedure for recall of the sole prosecution witness for cross examination.

Mr. Kazi Helal Uddin, learned Advocate for the petitioner submits that the appellant was the sole accused of Metro Session Case No.9320 of 2013 under Section 138 of the Negotiable Instrument Act, 1881 but he had no knowledge as to the above case so he could not appear and contest the same. After passing of the impugned judgment and order he preferred an appeal and in the above appeal submitted a petition for recall of the sole prosecution witness for cross examination. The learned Additional Session Judge most illegally rejected above petition which is not tenable in law.

Ms. Farhana Afroze Runa, learned Assistant Attorney General for state submits that since the trial of above case was held in absentia of the sole accused and above accused preferred a Criminal Appeal challenging the legality and propriety of above judgment and order of conviction and sentence and the appeal was admitted the learned Metropolitan Session Judge committed error in not giving the

petitioner a legitimate opportunity to recall the sole prosecution witness for cross examination.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

As mentioned above the petitioner was the sole accused of Metro Session Case No.9320 of 2013 under Section 138 of the Negotiable Instrument Act, 1881 and he was tried in absentia. The petitioner could not cross examine the sole prosecution witness at trial. As such, the petitioner rightly submitted a petition under Section 428 of the Code of Criminal Procedure for recall of above sole prosecution witness for cross examination. The learned Metropolitan Additional Session Judge failed to appreciate above materials on record properly and most erroneously rejected above petition of the petitioner which is not tenable in law.

In above view of the materials on record we find substance in this application and accordingly, we are setting aside the order dated 02.02.2023 passed by the learned Additional Metropolitan Session Judge, 8th Court, Dhaka as

mentioned above and directing the learned Additional Metropolitan Session Judge, 8th Court, Dhaka to provide the petitioner accused an opportunity to recall the sole prosecution witness for cross examination and then proceed with the disposal of the appeal in accordance with law.

With above direction this application is disposed of.

Let a copy of this order be transmitted to the Court concerned at once.

MD. MASUDUR RAHMAN
BENCH OFFICER